The Federal Income Tax: Felonious Grand Larceny

This article shows the federal income tax is an unconstitutional and unlawful revenue-raising scheme, making it **Felonious Grand Larceny** because the Framers had no Intent to tax income; therefore, they **did not** grant the government power to tax income for any purpose at the **1787 Constitutional Convention**.

In addition, this article shows the Framers did not include **Article V** in the Constitution as a **permissive license** for the government to expand, alter, or **reverse** their core principles or **intentions**, as the **Sixteenth Amendment** did

Instead, it shows Article V was included in the Constitution to correct defects and errors discovered through experience.

The authenticated evidence provided in this article, the Constitution, Madison's and Farrand's Notes of the Debates at the Constitutional Convention, the Federalist and Anti-Federalist Papers, and the Constitution's Ratification Debates, substantiates the facts stated above.

Therefore, the supreme Court and its lower courts' rulings the federal income tax is constitutional and lawful are clear evidence of the Courts' complicity in the government's **Felonious Grand Larceny**

In addition to the authenticated evidence listed above, this article provides additional evidence substantiating the government's **Felonious Grand Larceny**.

Presenting this authenticated and additional evidence entails providing an overview of taxation in the United States **(People's Union)**, starting with the Constitutional Convention.

Taxing Income Was Not Contemplated by the Framers

Taxing income was not contemplated by the Framers at the 1787 Constitutional Convention. The Convention debates regarding the government's taxing powers centered on **Direct taxes, Duties, Imposts, and Excises**, which are the **only** enumerated taxing powers granted to the government in **Article 1, Section 8, Clause 1** (the taxing powers Clause).

None of the Framers' debates at the Convention about the government's taxing powers involved a debate on taxing income.

Taxing income wasn't even a blip on the Framers' radar because there is zero evidence the Framers ever considered taxing income, not in the Constitution, the Constitutional Convention debates, the Federalist and Anti-Federalist Papers, or in the Constitution's ratification debates.

Taxing income as a source of revenue was completely outside the Framers' thinking.

Even the ardent Federalists, such as Hamilton, Madison, and Jay, the authors of all the Federalist Papers, never contemplated taxing income **for any purpose**.

Hamilton, the **most ardent** of the Federalists at the Convention, vigorously advocated for a strong central government with expansive authority in his elongated speech at the Convention on June 18, which included a strong, broad, and effective taxing power; however, even he never raised the idea of taxing income at the Convention.

Although, Hamiltons' plan was not adopted by the Framers, he still influenced them to increase the central government's overall power, which resulted in the enumerated powers listed in Article 1, including the enumerated taxing powers in Article I, Section 8, Clause 1, which were granted for the purpose of paying the debts, and providing common Defense and general Welfare for the United States **(People's Union)**, and not for increasing the government's own or other private parties' power.

Because Hamilton's radical vision of government power was not realized at the Convention, he promoted his ideas through several of his Federalist Papers.

In **Federalist Paper No. 12**, Hamilton, as he did at the Convention, argued against **direct taxes**, stating they were **impracticable** to raise any very considerable sums, citing Britain's reliance on **indirect taxes** despite its wealth and strong government.

Emphasis added.

Hamilton's reluctance towards Direct taxes has been attributed by many to his marriage **(1780)** into one of the most prestigious families in the country at that time, the **Schuylers**, which gave him access to a network of powerful families like the **Livingstons, Van Renselaers, and Van Cortlandts**, all based in New York State, which at the time, other than the wealthy families, was Anti-Federalist.

These wealthy families Hamilton was intimately connected with owned, between them, millions of acres of real estate, and direct taxes (imposed upon real estate holdings) would have encumbered their properties.

In **Federalist Paper No. 21**, Hamilton praised Duties/Imposts and Excises, which in the Framers' era were often referred to as **Inland Duties/Imposts**, being imposed on imported articles (Duties/Imposts), and articles imported or internally produced for **consumption** (Excises), making certain goods, commodities, and products subject to both Duty/Impost and Excise.

Hamilton and the other Framers did not invent Excises. They adopted a well-established Anglo-American fiscal concept from British revenue systems, colonial experience, and discussions in which Excises were consistently understood as taxes on goods, commodities, and products, imported or internally produced for consumption.

Furthermore, all Duties/Imposts and Excises were imposed on **physical items** imported (Duties/Imposts) or imported or domestically produced for consumption (Excises).

Because income is not a **physical item**, the Framers (at the Convention) never considered income as the **object** of any tax they granted to the government in Article 1, Section 8, Clause 1.

Therefore, no Duty/Impost or Excise was ever imposed on income from any source derived until the 1861 Civil Rebellion.

In **Federalist Paper No. 36**, Hamilton subdivided internal taxes into "DIRECT" (head count, land, livestock, and buildings) and "INDIRECT" (Duties/Imposts on articles imported, and **Excises** on articles imported or domestically produced for **consumption**).

In **Federalist Paper No. 30**, Hamilton's **prescriptive language** implies the Constitution granted the government an unlimited taxing power (a major part of his wish list at the Convention); however, he avoids declaring this outright.

As Madison stated in **Federalist Paper No. 45**, *"The powers delegated by the proposed Constitution to the federal government* ***[including its taxing powers]*** *are* ***few and defined****."*

Emphasis and brackets added.

Since the Framers never contemplated granting the government power to tax income, the word **"income"** does not appear in the Constitution or in Madison's or Farrand's Notes of the Debates at the Convention.

As stated above, taxing income as a source of revenue was completely outside the Framers' thinking.

Therefore, no Framer at the 1787 Constitutional Convention proposed a Tax of any kind to be levied upon income for any purpose.

Hamilton's Actions as Secretary of the Treasury

Alexander Hamilton's admiration for the British government's overall strength—particularly its fiscal and taxing system, public credit mechanisms, and centralized financial institutions—profoundly shaped his vision for the United States **(People's Union)** and directly influenced his policies as Secretary of the Treasury.

Consequently, Hamilton's actions as Secretary of the Treasury, modeling his actions on the British system, mark the government's **first** unconstitutional and unlawful **breach of the barriers** the Framers put on the government's enumerated powers, especially its enumerated taxing powers.

When Hamilton served as Secretary of the Treasury from **1789 to 1795**, and as an unofficial advisor to the government until his death in **1804**, he catered to the wealthy families by having the 1790 Funding/Assumption Act (1 Stat 138) passed by the **Federalist Congress**, which Act converted the States' Revolutionary War debt and the Continental Congresses' war debt into a federal liability at 100% nominal/face value redemption.

The wealthy families capitalized on this Act by purchasing **tens of thousands** of depreciated certificates throughout the 1780's at steep discounts (10-25% of nominal/face value) and converted them into the new government's Treasury bonds, making significant profits immediately and in the future from interest dividends.

Hamilton also catered to wealthy families by having the **Bank Act of 1791 (1 Stat. 191),** inspired by the **Bank of England**, passed by the **Federalist Congress**, enabling them to make huge profits as the primary subscribers.

Hamilton's **Bank Act** was vehemently opposed by Madison, Jefferson, Randolph (the Attorney General), and several others as unconstitutional and unlawful; however, the Federalist Congress passed it, and **President Washington**, who sided with Hamilton, signed it into law.

The above reforms by Hamilton were designed to tie wealthy interests to the federal government's success.

In addition to the above, Hamilton avoided imposing direct taxes and raised revenue to pay all this assumed war debt through Duties/Imposts on articles imported, and Excises on goods, commodities, and products either imported or domestically manufactured for **consumption,** as evidenced by his **1790 Report on Public Credit** submitted to Congress, resulting in the **1791 Whisky Tax Act**.

In his **1790 Report on Public Credit** submitted to the Federalist Congress, he urged Congress to increase Duties on imported distilled spirits and to impose a new **Excise** on certain goods imported or domestically produced for **consumption,** in addition to distilled spirits. Hamilton presented his **Excise** on distilled spirits as a **"luxury"** tax.

However, for agrarian/rural people who produced their own whisky, it was not a **luxury item**; it was a **staple** they consumed and used as **currency in barter**.

The enactment of the tax on distilled spirits led to the **Whisky Rebellion of 1794**, and the agrarian/rural people referred to Hamilton as a **"taxing tyrant,"** a label that lingered on for some time after the rebellion.

Although the **Whisky Tax Act** was constitutional and lawful, regardless of its impact on the agrarian/rural people, in 1792, Hamilton, in his Report to Congress, requested Congress to pass additional Excises, which far exceeded the Framers' **consistently understood** public meaning of Excises.

Hamilton's recommendations were enacted by the Federalist Congress in 1794 as **Excises**. They were:

Carriage tax: an Excise on the **Private** use of carriages, thereby taxing **Private activities**.

Auction duties: an Excise on sales receipts from auctions, thereby taxing **Private transactions**.

Stamp duties: an **Excise** on both **Private** and public documents, papers, and printed materials; again taxing **Private activities**.

Licenses for resellers of distilled spirits: an Excise (**License Fee)** for retailers of foreign liquors and wines, further expanding Excises to include **Private occupations**.

Hamilton, regardless of whether he was aware or not of what he was doing, by promoting his series of tax Acts listed above, unconstitutionally and unlawfully converted **Private** activities, transactions, and occupations into **federal privileges** subject to Excise, in direct violation of the Framers' consistently understood public meaning of Excises.

Therefore, all Hamilton's taxing Acts listed above are unconstitutional and unlawful because there is no power granted in Article 1, section 8, Clause 1, authorizing the government to convert **Private** activities, transactions, and occupations into federal privileges subject to Excise, or to exceed the Framers' consistently understood public meaning of Excises.

Furthermore, in none of Hamilton's Federalist Papers discussing Excises did he state, or even imply, that Excises are imposed on Private activities, transactions, or occupations. All his Federalist Papers state Excises are imposed on articles of **consumption**.

Hamilton's statement in **Federalist Paper No. 36** clearly shows Hamilton knew that Excises are imposed on articles of **consumption**.

"The taxes intended to be comprised under the general denomination of internal taxes, may be subdivided into those of the direct ***[capitation and real estate holdings]*** *and those of the indirect kind. ...* ***And indeed, as to the latter, by which must be understood duties and excises on articles of consumption****, one is at a loss to conceive what can be the nature of the difficulties apprehended."*

Emphasis, brackets, and underline added.

Even Madison, probably the most ardent Federalist at the Convention, other than Hamilton himself, who fell out with Hamilton over the **1791 Bank Act**, declared the **Carriage Act** tax an unconstitutional and unlawful tax in Congress, and further, in a letter to **Jefferson** in **May of 1794**, warned that Hamilton's entire series of tax Acts listed above were **"pernicious innovations"** he thought would break down **"the barriers of the Constitution",** which, in fact, they did.

Hamilton's conversion of private activities, transactions, and occupations into federal privileges subject to the Excise became the government's permanent ploy to unconstitutionally and unlawfully impose Excises (indirect taxation) on **Private activities, transactions, and occupations**, even after the ratification of the unconstitutional and unlawful **Sixteenth Amendment**.

The Sixteenth Amendment was merely a nefarious way for the government to continue what it had been doing since the Hamilton era.

Although Jefferson's Democratic-Republican Congress repealed all of Hamilton's tax Acts listed above in **1802**, the Democratic-Republican Congress reenacted them between **1813 and 1817** due to the **War of 1812**.

Hamilton's tax Acts listed above paved the way for the government to unconstitutionally and unlawfully impose Excises on Private activities, transactions, and occupations whenever it chose, especially during government exigencies, such as war.

Despite Madison's declaration that Hamilton's 1794 Carriage Act tax was unconstitutional and unlawful, the Federalist supreme Court, in the **1796 procedurally staged *Hylton* case**, upheld the tax as constitutional and lawful under Excise.

In this case, Hamilton, who had retired as Secretary of the Treasury and was practicing law in New York, was specially retained by the government to defend his Carriage Act, the only time in his law practice he appeared before the Supreme Court.

As stated, the case was procedurally staged to have the supreme Court review it. Therefore, the case was intentionally staged procedurally by the government as a test case, and Hamilton played a key role in orchestrating its **collusive setup**.

The Treasury Department, still heavily influenced by Hamilton, who was acting as an unofficial advisor with outsized influence on President Washington, for whom he served as aide-de-camp during the Revolutionary War, wanted a definitive ruling that the tax was **not** a direct tax.

Hamilton and the Federalist justices wanted to establish the **precedent** that Congress had broad power to impose internal taxes without apportionment, a

precedent that ultimately led to the enactment of the federal income tax during the Civil Rebellion and the Reconstruction Period that followed.

Hamilton and the supreme Court structured the entire litigation, including the inflated 125 carriages, the $2,000 jurisdictional amount, the split in the circuit court ruling, the confessed judgment, and more, specifically to bring the issue before the supreme Court.

Because Hamilton and the Federalist Supreme Court wanted a quick decision, they arranged for Hylton to agree to a judgment against him rather than wait for a retrial in the circuit Court, allowing the case to be appealed to the supreme Court immediately.

The President Washington-appointed Federalist supreme Court ruled unanimously that the carriage tax was constitutional and lawful under Excise.

Justice Wilson, one of the four justices overseeing the case, had previously ruled against Hylton in the split-circuit Court case, which was comprised of only two judges, Wilson and Griffin, a local judge from Virginia, who ruled in favor of Hylton, resulting in the split decision.

Also, two justices overseeing the case, Wilson and Patterson, were Framers at the Convention; therefore, they knew the Framers' public meaning of **Excises**; however, they completely ignored mentioning it because Hylton never raised it in his complaint. Hylton's complaint was the Carriage Act tax was a direct tax requiring apportionment; therefore, the entire case centered on whether it was a direct or an indirect tax.

In response to Hylton's complaint, Hamilton and the Court narrowed the scope of direct taxes to capitation **(head count)** and land taxes as the principal **objects of the tax**, described the tax as a use/expense/consumption tax, not a tax on property, and most importantly, by demonstrating that applying the apportionment rule to carriages was impractical due to the disproportionate burdens among the States, the Court achieved its mission.

In short, the government didn't just hope for a favorable ruling —it orchestrated the case to produce the outcome it wanted.

The details surrounding the ***Hylton*** case are presented to show how deeply complicit the supreme Court was and is in the government's **Felonious Grand Larceny**.

After the ***Hylton*** decision, Hamilton's entire suite of unconstitutional and unlawful tax Acts became the blueprint for the government to unconstitutionally and unlawfully convert **Private** activities, transactions, and occupations (individual or corporate) into **federal privileges** subject to **Excise**.

In December 1817, Hamilton's reenacted Tax Acts were all repealed **(3 Stat 401),** and the United States **(People's Union)** operated **43** years on **Duties/Imposts (Tariffs)** alone.

The 1861 Civil Rebellion

Four months after the Civil Rebellion started in April of 1861, the government enacted the 1861 Revenue Act. In this Revenue Act, the government included the **very first** unconstitutional and unlawful federal income tax provision **(12 Stat. 292, §49)**, without specifically stating it was an Excise. The tax was presented as an indirect tax requiring no apportionment.

The government realized within a year that the 1861 Revenue Act was insufficient to raise the funds it wanted.

In addition to this insufficiency, the 1861 Revenue Act lacked administrative and enforcement procedures.

Consequently, the government enacted the superseding **1862 Revenue Act (12 Stat 432, §90)** as an Excise (Appendix on pages 24 & 25).

The unconstitutional and unlawful Revenue Act of 1862 imposed a number of unconstitutional and unlawful Excises, including the one on income, which not only violated the Framers' Intent to **not tax** income for any purpose, exceeded their consistently understood public meaning of **Excises**, but also unconstitutionally and unlawfully converted **Private** income earners into recipients of a **federal privilege to earn income**.

The government justified the income tax as a wartime emergency, when nowhere in the Constitution, the Notes of the Convention Debates, the Federalist and Anti-Federalist Papers, or the Constitution's Ratification Debates is there any evidence showing the Framers granted the government an exception to their Intent to **not tax** income under certain urgent conditions, such as war.

The Framers granted the government **only four enumerated taxing powers** in **Article 1, Section 8, Clause 1, and taxing income, for any purpose or under any condition, was not among them.**

As reiterated in this article, taxing income was not even contemplated by the Framers at the Convention.

For this reason, the word **"income"** does not appear in either the Constitution or in Madison's and Farrand's Notes of the Debates at the Convention.

Since neither the 1861 Revenue Act's income tax provision nor the 1862 Revenue Act was facially challenged for constitutionality, no adjudication regarding these Revenue Acts exists.

However, their successor Revenue Acts taxing income were challenged for constitutionality after the Civil Rebellion was over, as being a Direct tax requiring apportionment in the *Pacific Insurance Co. v. Soule, 74 U.S. (7 Wall.) 433* **(decided 1868***), Veazie Bank v. Fenno, 75 U.S. (8 Wall.) 533* **(decided 1869),** and *Springer v. United States, 102 U.S. 586* **(decided 1881***)* supreme Court cases.

In all the above cases, the supreme Court unconstitutionally and unlawfully ruled the tax on income constitutional and lawful as an Excise, completely ignoring the framers' intent to **not tax** income, the Framers consistently understood public meaning of Excises, and the unconstitutional and unlawful conversion of **Private** income earners into recipients of a federal privilege to earn income.

The Framers **deliberately** did not grant the government power to tax income in Article 1, Section 8, Clause 1. Instead, the Framers granted the government power to lay and collect **Direct Taxes** (principally on head count and real estate holdings), **Duties/Imposts** (goods, commodities, and products being imported), and **Excises** (goods, commodities, and products either imported or internally produced for **consumption**).

The above is the full extent of the government's enumerated taxing powers granted in Article 1, Section 8, Clause 1 (the taxing powers Clause).

Furthermore, as previously stated, all the enumerated taxing powers granted in Article 1, Section 8, Clause 1, are imposed on **physical items**.

The Framers granted the government no taxing power where **physical items** were not the **object** of the tax.

To reiterate, because of its importance, all the government's enumerated taxing powers granted in Article 1, Section 8, Clause 1, Direct Taxes, Duties, Imposts, and Excises, are all imposed on physical items.

Since income is not a physical item, it can never be constitutionally and lawfully taxed for any purpose or under any condition, including war.

This fact alone proves the federal income tax is Felonious Grand Larceny by the government.

Repeal of the Unconstitutional and Unlawful Federal Income Tax

From 1861 to December 31, 1871, the unconstitutional and unlawful federal income tax remained in effect; however, in **1870**, the government repealed it, effective December 31, 1871 **(16 Stat 256 §§1 & 6)** due to mounting odium/repugnance toward the tax, especially from the wealthy, as the Civil Rebellion was over.

The government attempted to revive the federal income tax through the 1894 Wilson-Gorman Tariff Act's income tax provision **(28 Stat 509, §27),** but the supreme Court declared it unconstitutional **(for the wrong reason)** in the highly suspect **(motive wise)** ruling in *Pollock v. Farmers' Loan & Trust Co.157 U.S. 429 (1895)*, which ruling led to the unconstitutional and unlawful **proposal** of the Sixteenth Amendment.

The justices in the *Pollock* case were well aware of Madison's Notes of the Debates at the Convention **(published in 1840)**; therefore, they knew the government was not granted the power to tax income for any purpose.

Instead of stating this, the Court ruled the tax was a "Direct tax" on the property from which the income was derived, when in fact it was an unconstitutional and unlawful **"Direct tax"** on income itself, not on the property from which the income was derived.

As stated above, the *Pollock* Court knew the government was not granted the power to tax income at the Convention, especially after reading Madison's notes, compiled by Jonathan Elliott in his **1836 Volume 5 of "The Debates in the Several State Conventions on the Adoption of the Federal Constitution"**, which notes the Court cited as authoritative historical evidence from the Constitutional Convention.

Despite the Pollock ruling, the government successfully reinstated the federal income tax for corporations through judicial legerdemain **(sleight of hand)** by the supreme Court, which nefariously interpreted the word **"by"** in section 38 of the Payne-Aldrich Tariff Act of 1909 **(36 Stat 112, §38)** to mean **"as"** in the 1911 *Flint v. Stone Tracy Co., 220 U.S. 107* case.

After misinterpreting the word **"by"** to mean **"as,"** the Court ruled the corporate income tax constitutional and lawful under **Excise**, stating doing business **"as"** a corporation is a **federal privilege** subject to **Excise**.

This statement revealed, **for the first time**, what the government had been doing since the Hamilton era: unconstitutionally and unlawfully converting **Private** activities, transactions, and occupations into federal privileges subject to Excise.

Regardless of the Court's revelation of what the government was doing since the Hamilton era, section 38 of the Payne-Aldrich Tariff Act does not state **business "as" such corporation;** it states **business "by" such corporation**, which means the **business "by" such corporation** must be liable for an Excise.

However, the multiple consolidated corporations involved in the case neither imported nor domestically produced goods, commodities, or products for **consumption**; therefore, none of these corporations were constitutionally and lawfully subject to Excise.

Therefore, the ***Flint v. Stone*** case is a classic example of the supreme Court's complicity in the government's **Felonious Grand Larceny**, rivaling even the 1796 ***Hylton*** case.

The Unconstitutional and Unlawful Sixteenth Amendment

In June 1909, President Taft sent a letter to Congress, urgently requesting that it propose an Amendment conferring upon the national government the power to impose an income tax without apportionment among the several States, in response to the 1895 *Pollock* ruling.

Congress acted on President Taft's urgent request the following month (July) and proposed the unconstitutional and unlawful Sixteenth Amendment **(36 Stat 184)**, which, upon ratification in 1913, **reversed** the Framers' Intent to **not tax** income.

Article V

Although the facts above are substantiated by the authenticated and additional evidence presented in this article, it appears on the surface the Framers may have granted the government power to **reverse** their Intent to **not tax** income via **Article V**, which states:

"The Congress, whenever two thirds of both Houses shall deem it necessary, shall propose Amendments to this Constitution, or, on the Application of the Legislatures of two thirds of the several States, shall call a Convention for proposing Amendments, which, in either Case, shall be valid to all Intents and Purposes, as Part of this Constitution, when ratified by the Legislatures of three fourths of the several States, or by Conventions in three fourths thereof, as the one or the other Mode of Ratification may be proposed by the Congress; Provided that no Amendment which may be made prior to the Year One thousand eight hundred and eight shall in any Manner affect the first and fourth Clauses in the Ninth Section of the first Article; and that no State, without its Consent, shall be deprived of its equal Suffrage in the Senate."

However, what appears to be true on the surface is not. The Framers included Article V for one purpose only, and Madison's **canonical** statement in **Federalist Paper No. 43** states the Framers' singular purpose for including Article V in the Constitution.

*"That useful alterations will be suggested by experience, could not but be foreseen. It was requisite, therefore, that a mode for introducing them should be provided. The mode preferred by the convention appears to be stamped with every mark of propriety. It guards equally against that extreme facility, which would render the Constitution too mutable; and that extreme difficulty, which might perpetuate its **discovered faults**. It moreover equally enables the general **[government]** and the State governments to originate the **amendment of errors**, as they may be pointed out by the experience on one side or on the other."*

Emphasis and brackets added.

Madison expounded further on this singular purpose in **Federalist Paper No. 37**.

"The novelty of the undertaking immediately strikes us. It has been shown, in the course of these papers, that the existing Confederation is founded on principles

which are fallacious; that we must consequently change this first foundation, and with it the superstructure resting upon it. It has been shown, that the other confederacies which could be consulted as precedents have been vitiated by the same erroneous principles, and can therefore furnish no other light than that of beacons, which give warning of the course to be shunned, without pointing out that which ought to be pursued. The most that the convention could do in such a situation, was to avoid the ***errors*** *suggested by the past experience of other countries,* ***as well as of our own****; and to provide a convenient mode of rectifying their own* ***errors [as well as our own]****, as* ***future experience*** *may unfold them.****"***

Emphasis and brackets added.

In No. 37, Madison essentially said, since the Articles of Confederation and the other Confederacies they consulted possessed no mode to correct errors discovered through experience; therefore, the best the Framers could do was to include Article V as a mode to **correct errors** in the Constitution discovered through experience.

In No. 37, Madison **reiterated** the purpose of including Article V in the Constitution, to correct defects and errors discovered through experience.

Furthermore, Hamilton agreed with Madison on the Framers' **purpose** for including Article V in the Constitution. In his **Federalist Paper No. 85**, Hamilton explicitly acknowledges human imperfection and endorses the role of future experience in revealing defects and errors and, through the amendment process in Article V, correcting them.

Hamilton's point in Federalist Paper No. 85 is: the Constitution should be ratified as is, and via Article V, correct defects and errors discovered through experience post ratification.

Therefore, Hamilton agreed with Madison that Article V was intended to correct defects and errors discovered through experience post ratification.

The major debates about Article V at the Convention occurred on September 10 and 15; however, there was no debate about whether Article V could be used to reverse the Framers' core principles or intentions.

In the September 10 debate, Hamilton stated:

*"It had been wished by many and was much to have been desired that an easier mode for introducing amendments had been provided by the articles of Confederation. It was equally desirable now that an easy mode should be established for supplying **[corrections for] defects** which will probably appear in the new System."*

Emphasis and brackets added.

Therefore, the Framers did not include Article V in the Constitution as a **permissive license** for the government to **reverse** their **intentions**.

The Framers, acknowledging that the Constitution had potential defects and errors, included Article V as a means to correct such defects and errors discovered through experience.

Article V served as a safety valve to correct identified defects and errors in the Constitution learned through experience, not as a means to overthrow the core structure of either the government's overall limited powers or its explicitly enumerated taxing powers.

The inclusion of Article V was driven by a widespread belief among the Framers that the Constitution—being a new and untested experiment—would inevitably reveal defects or errors through practical experience, and a flexible **(but controlled)** amendment process was essential to address them without the rigidity that doomed the Articles of Confederation.

There is no evidence—public or private—that any Framer supported using Article V to expand, alter, or reverse their core principles or intentions.

Framers who were Federalists, such as Hamilton and Madison, emphasized Article V's high thresholds to prevent radical, frequent, or destructive changes, permitting only deliberate corrections for defects and errors discovered through experience.

Furthermore, Hamilton and Madison were not the only Framers advocating for the purpose of including Article V in the Constitution.

The debates at the Convention demonstrated a strong consensus among the Framers, despite their disagreements relative to its language, that the amendment process was essential to address defects and errors discovered through experience.

Therefore, based directly on the Framers' own words, it is clear they included Article V in the Constitution to correct defects and errors discovered through experience, not as a permissive license for the government to expand, alter, or reverse their core principles or intentions.

Since the Framers' Intent to **not tax** income is **not a defect or error** in the Constitution, it is an integral part of the Constitution, and consequently, the Framers' Intent to **not tax** income, as an integral part of the Constitution, is the **Law of the Land**.

As the Law of the Land, the Framers' Intent to **not tax** income is **immutable**, and it renders the government's use of Article V to **reverse** the Framers' immutable Intent to **not tax** income an unconstitutional and unlawful use of Article V.

Therefore, the Sixteenth Amendment is unconstitutional and unlawful because, as per the Framers' immutable Intent for including Article V in the Constitution, the government had no authority to **even propose it**, never mind having it ratified by the State Legislatures.

To repeat, the government, as per the Framers' immutable Intent to not tax income, and their immutable Intent for including Article V in the Constitution, had no constitutional or lawful authority to even propose the Sixteenth Amendment.

Therefore, the Sixteenth Amendment is **void in toto**, meaning it is completely invalid as if it had never been proposed.

Consequently, the federal income tax it established is also **void in toto**, meaning it is void as of **1913**.

Originalist Constitutional Scholars

Before proceeding, I recognize that some prominent originalist constitutional scholars have no issue with the government's use of Article V to propose the Sixteenth Amendment; however, it is a major issue when the government

uses Article V unconstitutionally and unlawfully, regardless of what these prominent scholars believe.

It seems these originalist constitutional scholars have accepted Article V at face value, meaning they consider its use valid; they therefore conclude the Sixteenth Amendment is valid, and consequently, the federal income tax it established is valid as well.

However, this conclusion is a gross mistake on their part because the Framers never granted the government power to tax income for any purpose, nor granted the government power to **reverse** their Intent to **not tax** income using Article V**,** because their Intent to **not tax** income for any purpose is not a defect or error in the Constitution, which is the Framers' sole purpose for including Article V in the Constitution.

It seems these originalist constitutional scholars have lost sight of the importance of ferreting out the Framers' actual Intent prior to concluding what is or is not constitutional and lawful under the Constitution.

The Underwood-Simmons Tariff Act of 1913

Eight months after the ratification of the Sixteenth Amendment by the State Legislatures in 1913, Congress enacted the Underwood-Simmons Tariff Act, which included an income-tax provision **(38 Stat 166, Section II A. Subdivision 1)**.

Frank Brushaber challenged the constitutionality of the income-tax provision in the District Court in November 1913, arguing that it was a Direct tax requiring apportionment, in line with the 1895 Pollock decision, which held that taxing income derived from property is a direct tax on the property itself and therefore requires apportionment.

The supreme Court in *Brushaber v. Pacific Railroad Co., 240 U.S 1*, ruled the challenged tax constitutional because, according to the Court, the Sixteenth Amendment authorized the tax**,** and it overruled the ***Pollock*** decision.

The Court remained silent about the unconstitutional and unlawful use of Article V to propose the Sixteenth Amendment because Brushaber never raised it in his complaint; however, the Court did not remain silent on the government's taxing power; instead, it lied about it.

Chief justice White's statement in volume 240, page 18, bolded below, is a **bald-faced lie**.

"We are of opinion that the confusion which has arisen from the assumption that the 16th Amendment conferred a new power of taxation is manifest, and that the Amendment simply prohibited the ***previous complete and plenary power of income taxation possessed by Congress from the beginning*** *from being taken out of the category of indirect taxation to which it inherently belonged and being placed in the category of direct taxation subject to apportionment ..."*

Emphasis added.

A month later, justice White repeated the same **bald-faced lie** in *Stanton v. Baltic Mining Co., 240 U.S. 103 (1916)*, on pages 112-113 of Volume 240,

"But, aside from the obvious error of the proposition, intrinsically considered, it manifestly disregards the fact that by the previous ruling ***[Brushaber]*** *it was settled that the provisions of the 16th Amendment conferred no new power of taxation, but simply prohibited the* ***previous complete and plenary power of income taxation possessed by Congress from the beginning*** *from being taken out of the category of indirect taxation to which it inherently belonged, and being placed in the category of direct taxation subject to apportionment..."*

Emphasis and brackets added.

There is no evidence — not in the Constitution, not in the Convention debates, not in the Federalist Papers, not in the Anti-Federalist Papers, not in any ratification-convention speech, not in 128 years (1788-1916) of federal statutes, and not in a single pre-1916 Supreme Court opinion — that Congress ever *"possessed a complete and plenary power to tax income from the beginning."*

Justice White knew this.

Every justice on the 1916 Courts knew this, and in all likelihood, the lawyers who argued the cases knew it too.

Therefore, justice White chose to **lie about history**. He simply claimed the government had the power to tax income **from the beginning**, which is a blatant lie.

In addition, by stating in both cases that the Sixteenth Amendment simply prohibited the federal income tax from being taken out of the **indirect class** of taxes, **in which it inherently belonged**, and placed into the class of **Direct taxes** subject to apportionment, justice White, **perhaps unbeknownst to him**, admitted that income could never be taxed because all taxing powers granted in Article 1, Section 8, Clause 1, are imposed on **physical items**, which income is not.

Furthermore, as substantiated above, the government had no constitutional and lawful authority to even propose the Sixteenth Amendment, which established the unconstitutional and unlawful federal income tax; nevertheless, justice White held the federal income tax constitutional and lawful based on the unconstitutional and unlawful Sixteenth Amendment.

Therefore, ruling the income tax provision of the Underwood-Simmons Tariff Act constitutional and lawful, based on the unconstitutional and unlawful use of Article V to propose the Sixteenth Amendment in combination with a bald-faced lie the government had a complete and plenary power to tax income from the very beginning, as well as the fact all taxing powers in Article 1, section 8, Clause 1, are imposed on physical items, which income is not**,** is one of the most audacious acts of judicial legerdemain **(sleight of hand)** in American history.

It turned an unconstitutional and unlawful **revolutionary expansion** of federal power into a **supposed restoration/renewal** of something that **never existed**, **or could ever constitutionally exist**.

When the Underwood-Simmons Tariff Act's income tax provision was enacted about 1% of people were liable for it, mostly the wealthy; however, by the time WW1 was over about 5% of the people were liable, still mostly the more wealthy; however, this liability escalated to a high of 90% of the working force at the end of WW2 in 1945 (about 60% paid), and the unconstitutional and unlawful federal income tax became solidly entrenched as a permanent fixture in the United States **(People's Union)**.

Judicial Supremacy

The unconstitutional and unlawful Revenue Acts taxing income from 1861-1912 were unconstitutionally and unlawfully enacted by converting Private activities, transactions, and occupations into federal privileges subject to Excise; therefore, they all relied on the supreme Court's **Constitutional Construction/Misrepresentation** of the government's taxing powers in Article 1, Section 8, Clause 1, as clearly demonstrated in all the supreme Court cases

regarding federal income taxes from 1868-1912, including the ***Pollock*** case because the justices in that case knew the government was not granted the power to tax income, as shown above.

The supreme Court's ability to Constitutionally Construct/Misrepresent the government's taxing powers in Article 1, section 8, Clause 1**,** in a way that granted what the government wanted, is a result of the Court's self-granted power of **Judicial Review** established by justice Marshall in the 1803 *Marbury v. Madison*, *5 U.S. (1 Cranch) 137* case.

The supreme Court's **Judicial Review** evolved into **Judicial Supremacy** over the United States **(People's Union),** an unconstitutional and unlawful presumption that it is the **ultimate and binding interpreter of the Constitution. Moreover, <u>its rulings</u> are the supreme Law of the Land**, a power neither the Constitution **(Article III)** nor Congress **(Statute)** granted the supreme Court.

The supreme Court's Judicial Supremacy over the United States **(People's Union)** is not speculation; it is fact. The supreme Court revealed this fact itself in *William G. Cooper et al., Members of the Board of Directors of the Little Rock, Arkansas, Independent School District, and Virgil T. Blossom, Superintendent of Schools, Petitioners, v. John Aaron et al., 358 U.S. 1 (1958)*, when on page 18 of Volume 358 it said:

"This decision [Marbury v. Madison] declared the basic principle that the federal judiciary is supreme in the exposition of the law of the Constitution, and that principle has ever since been respected by this Court and the Country as a permanent and indispensable feature of our constitutional system. ***It follows that the interpretation of the Fourteenth Amendment enunciated by this Court in the Brown case is the <u>supreme law of the land</u>,*** *and Art. VI of the Constitution* ***makes it of binding effect*** *on the States 'any Thing in the Constitution or Laws of any State to the Contrary notwithstanding."*

Emphasis and underline added.

This is a brazen and arrogant statement by the supreme Court, especially since the Court has no constitutional (Article III) or congressional (Statute) authority to make it.

After this case, the Court never made such a brazen and arrogant statement, or anything similar, in any other case; however, it continued to assert its Judicial

Supremacy over the United States **(People's Union)** regarding the federal income tax.

The supreme Court may have softened its rhetoric about its Judicial Supremacy over the United States **(People's Union)**; however, it did not reduce its practice of asserting it across the board, especially regarding the unconstitutional and unlawful federal income tax.

The Supreme Court's Role in the Government's Felonious Grand Larceny

As shown throughout this article, the supreme Court's crucial role in the government's **Felonious Grand Larceny** is acting as the judicial enforcer.

Ever since the 1796 ***Hylton*** case, the Supreme Court has consistently fulfilled this role.

The only apparent "fly in the ointment" is the very questionable ruling **(motive-wise)** in the 1895 ***Pollock*** case, which, as previously stated, led to the unconstitutional and unlawful proposal of the Sixteenth Amendment, on which the past **113 years** of federal income taxes are based.

Although Congress unconstitutionally and unlawfully proposed the Sixteenth Amendment and sold it to the State Legislatures as a **"tax the rich"** amendment that would have no effect on the States' citizens, and capitalized on the public sentiment at the time—especially after the Pollock ruling—the federal income tax could not exist without the Supreme Court fulfilling its role.

As the judicial enforcer, the supreme Court uses the aforementioned judicial tactics: Judicial Review, Constitutional Construction/Misrepresentation, and Judicial Supremacy over the United States **(People's Union)**.

However, its main tactic, refined over the years, is **Linguistic Alchemy**, which it cleverly uses to make its double-speak array of dicta/opinions, and its outright lies appear and sound authoritative; however, they are not.

They remain dicta/opinions and outright lies.

Having not read all the supreme Court cases regarding the federal income tax from 1868 to the present, I cannot definitely say whether all of the justices have or currently use these nefarious ploys described above to judicially enforce the government's **Felonious Grand Larceny**.

However, having read countless supreme Court cases regarding the federal income tax, I find the overwhelming majority of them have, and continue to do so today.

The justices and lower Court judges who hold that the government has a ***complete and plenary power to tax income*** are either ignorant at best or nefarious at worst.

Either way, all supreme Court cases ruling the federal income tax is constitutional and lawful are **void in toto**, based on the Framers' **immutable** Intent to **not tax** income, their **immutable** Intent to include Article V in the Constitution, and the fact all taxing powers granted to the government in Article 1, Section 8, Clause 1, are imposed on **physical items**, which income is not.

Therefore, the federal income tax stands as **irrefutable and indisputable evidence** of the supreme Court and its lower Court's complicity in the government's **Felonious Grand Larceny**.

Call to Exert Lawful Pressure on Congress and the Supreme Court

This article's substantiation that the Sixteenth Amendment and the federal income tax it established are unconstitutional and unlawful is a good start.

However, it will not, by itself, stop or prevent the government from continuing its **Felonious Grand Larceny**.

Only **lawful pressure** from informed people armed with verifiable facts and evidence can achieve this.

This is the article's purpose and intent—to inform people, and furthermore, inspire them to put lawful pressure on Congress to repeal the federal income tax retroactive to 1913.

Additionally, exert lawful pressure on Congress to propose an Amendment repealing the Sixteenth Amendment and have it ratified through a Convention of States, just as the Eighteenth Amendment was repealed in 1933.

Ratification by a Convention of States increases the likelihood the people will have a louder voice in the ratification process.

Also, exert lawful pressure on the Supreme Court and its lower Courts to declare the federal income tax unconstitutional and unlawful based on the facts and evidence presented in this article.

Summary in a Nutshell

The Framers deliberately withheld power to tax income from the government at the 1787 Constitutional Convention. Instead, they granted four explicitly enumerated taxing powers in Article 1, Section 8, Clause 1.

They are **Direct taxes, Duties, Imposts, and Excises**, and nothing more.

Further, all these enumerated taxing powers above are imposed on physical items, which income is not, and consequently, income can never be taxed for any purpose, or under any condition.

Stated in simple English, no physical items, no taxing power granted.

Furthermore, the authenticated evidence provided in this article, the Constitution, Madison's and Farrand's Notes of the Debates at the Convention, the Federalist Papers, the Anti-Federalist Papers, and the Constitution's Ratification Debates contain no evidence stating, or even implying, the Framers granted the government an exception, enabling it to tax income under certain exigencies, such as war.

In addition, Article V was included in the Constitution to provide a mode to correct defects and errors discovered through experience, and not as a permissive license to expand, alter, or **reverse** the Framers' core principles or **intentions**.

The Framers' decision not to tax income is not a defect or error in the Constitution; it is an intentional and integral part of the constitutional design; therefore, it is the **Law of the Land**, and as such, it is **immutable.**

The Sixteenth Amendment was unconstitutionally and unlawfully proposed to grant the government a complete and plenary power to tax income, a power the Framers deliberately withheld at the Constitutional Convention.

The government's felonious income taxing scheme, established by the unconstitutional and unlawful Sixteenth Amendment, violates the Framers' **immutable** Intent to **not tax** income, their **immutable** Intent for including **Article**

V in the Constitution, and additionally, it violates the **irrefutable and indisputable** fact that all taxing powers granted in Article 1, Section 8, Clause 1, are imposed on **physical items,** which income is not**.**

Therefore, any claim the government possesses authority to tax income for any purpose, or under any condition, including war, is unconstitutional and unlawful for all the reasons stated in this article, making the federal income tax **Felonious Grand Larceny** by the government.

Dean

PS: This article will not only be posted on Dean's Substack, it will be sent to all contactable Treasury/IRS Oversight members of both the House and Senate, all supreme Court Justices, Mr. Bessent, the Secretary of Treasury and Acting IRS Commissioner, Donald J. Trump, the President, as well as a collection of podcasters, and whoever else I feel should receive a copy. In addition, it will be posted on a website I intend to create in the future to expose detailed information regarding the government's unconstitutional and unlawful overreach and abuse of power under the color of law, not only regarding its taxing power, but across the full spectrum of its unconstitutional and unlawful behavior.

Appendix

UNITED STATES INCOME TAX RETURN **Under the Excise Laws of the United States Revenue Act of 1862.**

To be completed by all persons liable to income tax under Sections 86–92 of the Revenue Act of 1862, approved July 1, 1862.

Name: _____ Residence: _____ County: _____ State: _____

STATEMENT OF INCOME For the year ending December 31, 1862, both days inclusive, derived from any kind of property, rents, interest, dividends, salaries, or from any profession, trade, employment, or vocation, or from any other source whatever, subject to the duties imposed by the Revenue Act of 1862.

1. Total Income from all sources: $_____ (Include property, rents, interest, dividends, salaries, professions, trades, or other sources)

2. Deductions: a. Taxes paid (other than this income tax): $_____ b. Necessary repairs to property: $_____ c. Other allowable expenses (specify): $_____ d. Total deductions: $_____
3. Taxable Income (Line 1 minus Line 2, less $600 exemption): $_____
4. Tax Calculation: a. Income from $600 to $10,000 at 3%: $_____ b. Income above $10,000 at 5%: $_____ c. Total tax due: $_____

DECLARATION I, _____, do solemnly declare that the foregoing is a true and faithful statement of the gains, profits, or income for the year 1862, as required by the Revenue Act of 1862, to the best of my knowledge and belief.

Signature: _____ Date: _____

Instructions:

- Submit this return to the Assistant Assessor of your district by the first Monday of May, 1863.
- The income tax is imposed on every person residing in the United States, and every citizen residing abroad in the employment of the Government of the United States, with incomes exceeding $600 per annum.
- Failure to file or pay the tax due may result in penalties as prescribed by law.
- For incomes exceeding $10,000, where 3% has been withheld by companies or associations
- For incomes exceeding $10,000, where 3% has been withheld by companies or associations on interest or dividends, an additional 2% tax applies to such amounts.